

CV-21-001167 ELIZONDO, AARON vs KCB VENTURES INC - Defendant, Tejinderpaul Chahal's, Motion for an Order That Requests for Admissions, Set One, to Defendant, ADCOMM, Inc., Be Deemed Admitted - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Request for Judicial Notice Defendant Tejinderpaul Chahal's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the court records identified in the request, including Plaintiff's Second Amended Complaint, Chahal's prior Motion to Compel Further Responses to Requests for Admission, Set One, the Court's order granting that motion, and the Notice of Ruling. Evidence Code section 452, subdivision (d). Merits Defendant Tejinderpaul Chahal's Motion for an Order Deeming Requests for Admission, Set One, to Defendant Adcomm, Inc. Admitted is DENIED. The motion is procedurally defective. Chahal's own moving papers establish that Adcomm served responses to the requests for admission on October 29, 2025. Although those responses allegedly consisted solely of objections and no substantive responses, Chahal acknowledged the existence of those responses by filing a motion to compel further responses, which the Court granted on April 7, 2026. Because responses were served, this is not a circumstance in which the responding party wholly failed to respond to requests for admission. Nonetheless, the present motion improperly proceeds as if no responses were ever received. As the premise for the motion is procedurally infirm, the Court declines to deem Requests for Admission Nos. 1 through 51 admitted pursuant to Code of Civil Procedure section 2033.280. The denial is without prejudice to any relief that may otherwise be available under the Discovery Act based upon an alleged failure to comply with the Court's prior order compelling further responses. The Court expresses no opinion regarding the merits of any such request.

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Merits

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